



## CHAPTER lxiv.

An Act to confirm certain Provisional Orders of the Minister of Health relating to Poulton-le-Fylde Todmorden and Willenhall. A.D. 1923.

[31st July 1923.]

**W**HEREAS the Minister of Health has made the Provisional Orders set forth in the schedule hereto under the provisions of the Public Health Act 1875: 38 & 39 Vict c. 55.

And whereas it is requisite that the said Orders should be confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Orders as amended and set out in the schedule hereto shall be and the same are hereby confirmed and all the provisions thereof shall have full validity and force. Orders in schedule confirmed.

2. This Act may be cited as the Ministry of Health Provisional Orders Confirmation (No. 10) Act 1923. Short title.



A.D. 1923.

S C H E D U L E.

URBAN DISTRICT OF POULTON-LE-FYLDE.

*Poulton-le-Fylde Order.* *Provisional Order to enable the Urban District Council of Poulton-le-Fylde to put in force the Compulsory Clauses of the Lands Clauses Acts.*

WHEREAS the Urban District Council of Poulton-le-Fylde (hereinafter referred to as "the Council") require to purchase and take the lands described in the Schedule hereto for the purposes of sewage outfall and disposal works and recreation grounds :

38 & 39 Vict.  
c. 55. Now therefore the Minister of Health in pursuance of the powers given to him by Section 176 of the Public Health Act 1875 and by any other Statutes in that behalf hereby orders that from and after the date of the Act of Parliament confirming this Order the following provisions shall have effect that is to say :—

Compulsory powers of purchase. 1. The Council shall be empowered for the purposes aforesaid to put in force with reference to the lands described in the Schedule hereto (subject to the continuance of existing public rights of highway if any) the powers of the Lands Clauses Acts as modified by the Acquisition of Land (Assessment of Compensation) Act 1919 with respect to the purchase and taking of lands otherwise than by agreement or any of them.

For protection of Thornton Urban District Council. 2. For the protection of the Thornton Urban District Council (in this section referred to as "the Thornton Council") the following provisions shall unless otherwise agreed in writing between the Thornton Council and the Council have effect (that is to say) :—

Notwithstanding anything contained in this Order or in the Act confirming it or shown on the deposited plan referred to in the schedule to this Order if within twelve months after the Royal Assent has been given to the Bill now pending in Parliament of which the short title is "the Thornton Urban District Council Bill" the Thornton Council serve notice to treat for the purchase of the lands and foreshore in their district shown on the said deposited plan other than the lands coloured red and blue on the plan hereinafter referred to the Council shall not purchase enter upon take or use any of the lands and foreshore in the Thornton Urban District shown on the said deposited



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plan other than the lands which are coloured red and blue on the plan signed in duplicate by John Robert Gaulter on behalf of the Council and Richard Bowman on behalf of the Thornton Council referred to in the clause of which the marginal note is " For protection of Poulton-le-Fylde Urban District Council" of the said Thornton Urban District Council Bill and upon which lands coloured red or some part thereof the out-fall sewer of the Council is constructed and the said lands coloured blue shall be used only as an occupation way.

A.D. 1923.  
—  
*Poulton-le-Fylde Order.*

3. This Order may be cited as the Poulton-le-Fylde Order Short title, 1923.

The SCHEDULE above referred to.

COUNTY OF LANCASTER.

Parish of SINGLETON FYLDE RURAL DISTRICT.

| No. on Plan. | Description of Property. | Owner.                                                                   | Lessee. | Occupiers.                                                                                     |
|--------------|--------------------------|--------------------------------------------------------------------------|---------|------------------------------------------------------------------------------------------------|
| 3            | Skippool Marsh           | Catterall & Swarbricks Brewery Limited<br>Robert N. Verdon<br>Secretary. | -       | Mr. John Arthur Banks.                                                                         |
| 2            | Pool (in Marsh)          | Ditto                                                                    | -       | Mr. John Arthur Banks.<br>Poulton-le-Fylde Urban District Council<br>John R. Gaulter<br>Clerk. |
| 1            | The Pool                 | Ditto                                                                    | -       | Ditto                                                                                          |

THORNTON IN THE FYLDE Township THORNTON Urban District.

|                 |                |                                                                          |   |                                                                                                                      |
|-----------------|----------------|--------------------------------------------------------------------------|---|----------------------------------------------------------------------------------------------------------------------|
| 16<br>(part of) | Skippool Marsh | Catterall & Swarbricks Brewery Limited<br>Robert N. Verdon<br>Secretary. | - | Mr. John Arthur Banks.<br>Sir James Halking.<br>Poulton-le-Fylde Urban District Council<br>John R. Gaulter<br>Clerk. |
|-----------------|----------------|--------------------------------------------------------------------------|---|----------------------------------------------------------------------------------------------------------------------|



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 —  
*Poulton-le-Fylde Order.*

| No. on Plan.                                                                                                                                                                                                                                                                                                                                                                                                                                                                      | Description of Property.                                    | Owner.                                                                | Lessee. | Occupiers.                                                                                  |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------|-----------------------------------------------------------------------|---------|---------------------------------------------------------------------------------------------|
| POULTON IN THE FYLDE Township POULTON-LE-FYLDE Urban District.                                                                                                                                                                                                                                                                                                                                                                                                                    |                                                             |                                                                       |         |                                                                                             |
| 298                                                                                                                                                                                                                                                                                                                                                                                                                                                                               | Land between Skippool Road and the Marsh and Outfall Sewer. | Catterall & Swarbricks Brewery Limited<br>Robert N. Verdon Secretary. | -       | Mr. John Arthur Banks.<br>Poulton-le-Fylde Urban District Council<br>John R. Gaulter Clerk. |
| <p>The above-mentioned lands are more particularly delineated and coloured red on a plan (being a copy of the deposited plan) in duplicate sealed with the Official Seal of the Minister of Health and marked " Plan referred to in the Poulton-le-Fylde Order 1923 " of which duplicate plan one part is deposited in the Offices of the Minister of Health and the other shall be deposited in the offices of the Council within fourteen days from the date of this Order.</p> |                                                             |                                                                       |         |                                                                                             |

Given under the Official Seal of the Minister of Health  
 this Tenth day of May One thousand nine hundred  
 and twenty-three.  
 (L.S.)

A. B. MACLACHLAN  
 Assistant Secretary Ministry of Health.

**BOROUGH OF TODMORDEN.**

*Todmorden Order.*    *Provisional Order for partially repealing altering and amending the Todmorden Corporation Act 1906.*

WHEREAS the Borough of Todmorden (hereinafter referred to as " the Borough ") is an Urban District of which the Mayor Aldermen and Burgesses acting by the Council (hereinafter referred to as " the Corporation ") are the local authority for the purposes of the Public Health Act 1875 and the unrepealed provisions of the Todmorden Corporation Act 1906 (hereinafter referred to as " the Local Act ") are in force in the Borough ;

And whereas Section 17 of the Local Act makes provision with reference to the running of motor omnibuses by the Corporation within the Borough ;

And whereas by Section 78 of the Local Act provision is made for enabling the Corporation to borrow moneys for the purposes of their motor omnibus undertaking under that Act subject to a proviso requiring the production in certain circumstances of evidence that the undertaking is being conducted in all respects on a paying basis ;



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And whereas the Corporation propose to run motor omnibuses upon the routes outside the Borough specified in this Order and the consents of the Minister of Transport the County Councils of Lancashire and the West Riding of Yorkshire the Urban District Councils of Hebden Bridge and Littleborough and the Rural District Council of Todmorden have been obtained to the running of motor omnibuses along those routes;

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—  
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 Order.*

And whereas the Corporation have made application to the Minister of Health for the issue of a Provisional Order partially to repeal alter or amend the Local Act in the manner hereinafter set forth :

Now therefore the Minister of Health in the exercise of the powers given to him by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf hereby orders that from and after the date of the Act of Parliament confirming this Order the Local Act shall be partially repealed altered and amended so that the following provisions shall have effect that is to say :—

38 & 39 Vict.  
 c. 55.

1.—(1) In this Order unless the context otherwise requires :— Definitions.

(a) “ Road authority ” means with reference to any road or part of a road over which any proposed omnibus service will pass the authority company or person charged with or liable to contribute to the maintenance of such road or part of a road ;

(b) “ Local authority ” means in case of an urban district the town council or urban district council as the case may be and in case of a rural district the rural district council ;

(c) “ The commencement of this Order ” means the date of the Act of Parliament confirming this Order.

(2) For the definition of motor omnibus contained in subsection 4 of Section 17 of the Local Act there shall be substituted the following definition :—

“ ‘ Motor omnibus ’ means any stage carriage moved by mechanical power obtained from some internal source including in that expression steam electrical and every other motive power.”

2.—(1) For subsection (1) of Section 17 of the Local Act the following provisions shall be substituted :—

Power to  
 provide and  
 run omni-  
 buses.

“ (1) Subject to the provisions of this Act the Corporation may provide and maintain (but shall not manufacture) and may run motor omnibuses within the Borough and upon the following routes without the Borough that is to say :—

(a) from the Borough boundary at Sandbed along Halifax Road to the boundary of the Hebden Bridge



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*Order.*

Urban District at Whiteley Arches which route is partly in the Parish of Blackshaw and partly in the Parish of Erringden both in the Rural District of Todmorden;

(b) in continuation of route (a) along King Street from Whiteley Arches to the junction of King Street with Colden Road otherwise known as Church Lane Mytholm which route is within the Hebden Bridge Urban District;

(c) along Todmorden Road from the Borough boundary at Steanor Bottom to Summit Inn Littleborough which route is within the Littleborough Urban District;

(d) with the consent of the Minister of Transport and the local authority of the district along any other route Provided that the consent of a local authority shall not be unreasonably withheld and any question whether or not such consent has been unreasonably withheld shall be determined by the Minister of Transport."

(2) In the case of any application for the consent of the Minister of Transport to run motor omnibuses along routes outside the Borough the Corporation shall give notice in writing of their proposals to the road authority (where it is not also the local authority) and shall publish notice of such proposals in the London Gazette and in such other manner as the Minister of Transport shall direct stating the manner in which and the time within which any persons affected by such proposals may object thereto and if any objection shall be made by any such person or the consent of the local authority is withheld the Minister of Transport may direct an inquiry to be held.

(3) The words "but the Corporation shall not create or permit any nuisance on any lands upon which they erect any such houses buildings or sheds" shall be added at the end of subsection (2) of Section 17 of the Local Act and in subsection (3) of the said section the words "or in or against any premises held by the Corporation in connection therewith" shall be inserted after the words "belonging to them."

Adaptation  
of roads.

3.—(1) (a) Before the Corporation commence to run motor omnibuses over any road or part of a road without the Borough it shall be determined by agreement between the Corporation and the road authority or failing agreement by the Minister of Transport whether it is necessary (in order to provide for the running of a motor omnibus service over any such road or part of a road) to adapt alter or reconstruct such road or part of a road or to strengthen any county bridge or district bridge and if so what sum of money per mile of road so to be adapted altered or reconstructed or what sum of money in respect of any such



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bridge shall be payable by the Corporation to the road authority by way of contribution towards the cost incurred in such adaptation alteration reconstruction or strengthening.

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*Order.*

(b) Within six months after the date upon which all questions to be agreed or determined in pursuance of paragraph (a) of this subdivision have been so agreed or determined the Corporation shall give notice in writing to the road authority as to whether they intend to run motor omnibuses over the road or part of a road or bridge in question.

(c) If the Corporation give notice in writing to the road authority that they intend to run motor omnibuses over the road or part of a road or bridge in question and if it shall have been agreed or determined that the Corporation are to make any payment to the road authority under the provisions of paragraph (a) of this subdivision the Corporation shall on receipt of any certificate which may from time to time be issued by the engineer in charge of the work of adaptation alteration or reconstruction of such road or part of a road or of strengthening such bridge pay to the road authority such proportion of the total amount of the contribution agreed or determined to be payable by the Corporation as the amount so certified to have been expended upon such work bears to the total amount estimated to be expended by the road authority on such work. Provided that the aggregate amount to be so paid by the Corporation shall not exceed the amount of the contribution agreed or determined to be payable by them as aforesaid.

(d) Notwithstanding anything in this subdivision the Corporation shall not be required to pay any sum in respect of any work towards or in respect of the adaptation alteration or reconstruction of any such road or part of a road or the strengthening of any bridge which is not executed within three years from the commencement of this Order or from the date on which the Corporation shall commence to run motor omnibuses over the road or part of a road to be adapted altered or reconstructed or over the bridge to be strengthened whichever date may be the later.

(e) Not more than one payment or (in the case of a payment by instalments in accordance with paragraph (c) of this subdivision) one series of payments shall be made in respect of any such road or part of a road so adapted altered or reconstructed or of any such bridge so strengthened.

(f) For the purposes of subdivision (1) of this Article the expression "county bridge" shall include every bridge maintainable by a county council and in respect of such bridge the county council shall be deemed to be the road authority and the expression "district bridge" shall include every bridge maintainable by a district council and in respect of such bridge the district council shall be deemed to be the road authority.



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(2) Any payment made to a road authority under this Article in respect of any main road retained by them under subsection (2) of Section 11 of the Local Government Act 1888 or maintained by them under subsection (4) of that Section shall be credited to the county council in ascertaining the amount payable by them under either of the said subsections of the Local Government Act 1888.

(3) If any such adaptation alteration reconstruction or strengthening as aforesaid shall involve an alteration of any telegraphic line (as defined by the Telegraph Act 1878) belonging to or used by the Postmaster-General the enactments contained in Section 7 of the Telegraph Act 1878 shall apply to any such alteration and the road authority shall be deemed to be "undertakers" within the meaning of the said Act.

(4) The road authority shall not under Section 23 of the Highways and Locomotives (Amendment) Act 1878 as amended by Section 12 of the Locomotives Act 1898 or otherwise make any claim against the Corporation in respect of extraordinary traffic by reason of the user of any highway by the motor omnibuses of the Corporation.

(5) An agreement under this Article with respect to any main road maintained by a local authority at the expense of any county council shall not be made except with the concurrence of the county council.

(6) Nothing in this Act shall impose any obligation upon any railway or canal company to strengthen adapt alter or reconstruct any bridge maintainable by them or enlarge any existing obligation.

As to cesser  
of powers.

4.—(1) The powers of running motor omnibuses under the provisions of this Order on any road or part of a road without the Borough may at the expiration of ten years from the commencement of this Order or the date on which such running commences whichever may be the later and at the expiration of any subsequent period of ten years be determined by the Minister of Transport on the application of the local authority of the district in which such road or part of a road is situate upon such terms as the said Minister may determine.

(2) Before issuing an order to determine the said powers the Minister of Transport shall hold a local inquiry at which opportunity shall be afforded to any person interested to object to the continuance or cesser of such powers.

(3) If the Corporation do not within a period of three years from the commencement of this Order provide a service of motor omnibuses on any route described in Article 2 of this Order or do not within three years from the giving of the consent of the Minister of Transport to the running by the Corporation of motor omnibuses on any route without the Borough provide



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a service of motor omnibuses on such route or having provided shall discontinue any such service the Minister of Transport may on the application of any local authority within whose district the route or any part of the route is situate and after considering any representation which may be made on behalf of the Corporation by Order declare that unless a service of motor omnibuses be provided within such period as the Minister of Transport may by such Order prescribe the powers of the Corporation under this Order in respect of the provision and running of motor omnibuses on such route or part of such route shall determine and if within the prescribed period such service be not provided as from the expiration of such period the powers of the Corporation under this Order in relation to the provision and running of motor omnibuses on such route or part of a route shall cease:

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Provided that this subdivision shall not apply or have effect in the event of the failure of the Corporation to provide a service of motor omnibuses on any route being due to strikes unforeseen accident or circumstances beyond the control of the Corporation.

5.—(1) (a) Subject to the provisions of this Article the Corporation may demand and take for passengers and parcels carried on motor omnibuses within or without the Borough fares and charges not exceeding such maximum fares and charges as may from time to time be approved by the Minister of Transport.

Fares and  
charges.

(b) Any application for a revision of such maximum fares or charges may be made by the Corporation or by the local authority of any district in which such motor omnibuses are run.

(2) Every passenger may take with him personal luggage not exceeding twenty-eight pounds in weight without extra charge but all such luggage shall be carried by hand and shall not occupy any part of a seat nor be of a form or description to annoy or inconvenience other passengers.

(3) The Corporation may if they think fit carry on the motor omnibuses small parcels not exceeding fifty-six pounds in weight and dogs in the care of passengers the charge for any such dog to be a sum not exceeding the fare payable by the passenger but they shall not carry any other goods or animals on the motor omnibuses.

(4) The fares and charges for the time being authorised under the provisions of this Order shall be paid to such persons and in such manner as the Corporation may by notice annexed to the list of fares and charges appoint.

6.—(1) The Corporation and any local authority empowered to run motor omnibuses in any borough or urban or rural district adjacent to the Borough or adjacent to any borough or urban

Working and  
other agree-  
ments.



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or rural district in which any route over which the Corporation are for the time being empowered to run motor omnibuses is situate may enter into and carry into effect agreements for the working user management and maintenance of all or any of the motor omnibus services which the contracting parties are empowered to provide subject to the provisions of the respective Acts or Orders under which such motor omnibus services are authorised.

(2) The Corporation and any company body or person may enter into and carry into effect agreements for the working user management and maintenance subject to the provisions of this Order of any motor omnibus services within the Borough or on any route over which the Corporation are for the time being empowered to run motor omnibuses.

(3) The Corporation and any such local authority company body or person as aforesaid may also enter into and carry into effect agreements for all or any of the following purposes (that is to say) :—

(a) The working user management and maintenance of any motor omnibuses lands depôts buildings sheds and property provided in connection with any such omnibus services as aforesaid by either of the contracting parties and the right to provide and use the same and to demand and take the fares and charges authorised in respect of such motor omnibuses ;

(b) The supply by any of the contracting parties under and during the continuance of any such agreement under this Article of motor omnibuses and conveniences in connection therewith necessary for the purposes of such agreement and the employment of officers and servants ;

(c) The interchange accommodation conveyance transmission and delivery of traffic arising on or coming from or destined for any motor omnibus service of the contracting parties ;

(d) The payment collection and apportionment of the fares and charges and other receipts arising from any such motor omnibus service as aforesaid.

(4) The Corporation shall not enter into or carry into effect any agreement under the provisions of this Article in relation to any motor omnibus service lands depôts buildings sheds or property beyond the Borough otherwise than with the consent of the local authority of the district within which such omnibus service lands depôts buildings sheds or property are situate. Provided that on complaint being made to the Minister of Transport that such consent is unreasonably withheld the Minister may if he thinks fit by order dispense with such consent.



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7. The Corporation may appoint the stations and places from which the motor omnibuses of the Corporation shall start or at which they may stop for the purposes of taking up or setting down passengers and may fix the time during which such omnibuses shall be allowed to remain at any such place but any such appointment and fixing shall (as respects any station or place outside the Borough) be subject to the consent of the local authority of the district within which that station or place is appointed which consent shall not be unreasonably withheld and any question as to whether or not any such consent is unreasonably withheld shall be determined by the Minister of Transport.

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Order.*

Stopping  
and starting  
places.

8.—(1) The Corporation may attach to any lamp-post pole standard or other similar erection on or in the highway on or near to any of their omnibus routes signs or directions indicating the position of stopping places for motor omnibuses :

Attachment  
of signs indi-  
cating  
stopping  
places to  
lamp-posts  
&c.

Provided that in cases where the Corporation are not the owners of such lamp-post pole standard or similar erection they shall give notice in writing of their intention to attach thereto any such sign or direction and shall make compensation to the owner for any damage or injury occasioned to the lamp-post pole standard or similar erection by the attachment and the Corporation shall indemnify the owner against any claim for damage occasioned to any person or property by or by reason of the attachment.

(2) Nothing in this Article shall be deemed to require the owner to retain any such lamp-post pole standard or similar erection when no longer required for his purposes.

(3) The Corporation shall not attach any such sign or direction to any pole post or standard belonging to the Postmaster-General except with his consent in writing.

(4) The Corporation shall not attach any such sign or direction to any lamp-post pole standard or any similar erection belonging to any railway company without their consent in writing which consent shall not be unreasonably withheld and any question as to whether or not such consent is unreasonably withheld shall be determined by the Minister of Transport.

9. The Corporation may run through motor omnibuses along any of the routes of their motor omnibuses or any specified portion thereof and such motor omnibuses shall be distinguished from other motor omnibuses in such manner as may be directed by the Corporation and they may demand and take for every passenger by such motor omnibuses a fare or charge not exceeding the maximum fare or charge authorised or chargeable for and in respect of the whole of such route or the whole of the portion thereof traversed by any such motor omnibuses

Through  
motor  
omnibuses.



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Power to  
reserve  
motor  
omnibuses  
for special  
purposes.

Provided that during the running of such through motor omnibuses the Corporation shall maintain a reasonably sufficient ordinary service of motor omnibuses.

10.—(1) Notwithstanding anything contained in this Order the Local Act or any other Act to the contrary the Corporation may on any occasion run and reserve motor omnibuses on any of their motor omnibus routes for any special purpose which the Corporation may consider necessary or desirable provided that such special motor omnibuses shall be distinguished from other motor omnibuses in such manner as may be directed by the Corporation and that during the running of such special motor omnibuses the Corporation shall maintain a reasonably sufficient ordinary service of motor omnibuses.

(2) The Corporation may make byelaws and regulations for prohibiting the use of any such motor omnibuses by any persons other than those for whose conveyance the same are reserved.

(3) The restrictions contained in this Order the Local Act or any other Act of the Corporation as to fares or charges for passengers shall not extend to any special motor omnibuses and in respect thereof the Corporation may demand and take such fares or charges as they shall think fit.

Shelters  
and waiting  
rooms.

11. The Corporation may erect and maintain shelters or waiting-rooms for the accommodation of passengers and may with the consent of the local authority and road authority use for that purpose portions of the public streets or roads.

Cloakrooms  
&c.

12. The Corporation may provide cloakrooms and rooms or sheds for the storage of bicycles tricycles and other vehicles articles and things at any dépôt or building used by them in connection with their motor omnibus undertaking and at suitable places on any of their routes and the Corporation may make charges for the use of such cloakrooms rooms and sheds and for the deposit of bicycles tricycles and other vehicles articles and things therein but shall not use for the purpose any part of the highway without the consent of the road authority.

Power to  
require  
intending  
passengers  
to wait in  
lines or  
queues.

13. For the better regulation of persons desiring to travel on or in the motor omnibuses of the Corporation the Corporation may erect and maintain barriers and posts at any stopping place or terminus and for that purpose may with the consent of the road authority use part of the highway and the Corporation may make byelaws requiring persons waiting to enter motor omnibuses at any stopping place or terminus upon any of their routes to wait in lines or queues and to enter such motor omnibuses in the order in which they stood in such line or queue.

For protec-  
tion of  
London

14. The following provisions for the protection of the London Midland and Scottish Railway Company (in this Article referred



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to as "the company") shall apply and have effect except so far as may be otherwise agreed in writing between the Corporation and the company:—

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 Order.*

Notwithstanding anything contained in this Order no shed shelter waiting room gangway cloakroom room barrier or post shall be erected maintained or provided nor shall any starting or stopping station or place be appointed nor shall the Corporation require persons waiting at any such stopping place or any terminus to wait in any line or queue so as to cause interference with or render less convenient the access to or exit from any station or depôt belonging to the company nor shall any such shed shelter waiting room gangway cloakroom room barrier or post be erected maintained or provided on any bridge carrying any street or road over the railways of the company.

Midland and  
 Scottish  
 Railway  
 Company.

15. All byelaws and regulations made by the Corporation under the provisions of this Order shall be made in accordance with the provisions of the Tramways Act 1870.

Byelaws.

16.—(1) Where any tree hedge or shrub overhangs any street or footpath in or forming part of any motor omnibus route of the Corporation so as to obstruct or interfere with the light from any public lamp or to interfere with vehicular traffic or with the free passage or comfort of passengers the Corporation may serve a notice on the owner of the tree hedge or shrub or on the occupier of the premises on which such tree hedge or shrub is growing requiring him to lop the tree hedge or shrub within fourteen days so as to prevent such obstruction or interference and in default of compliance the Corporation may themselves carry out the requisition of their notice doing no unnecessary damage.

Lopping of  
 trees over-  
 hanging  
 highways.

(2) Any person aggrieved by any requirement of the Corporation under this Article may appeal to a court of summary jurisdiction having jurisdiction in the place where the tree hedge or shrub is situate within fourteen clear days after the service of such notice provided he gives written notice of such appeal and the grounds thereof to the Town Clerk of the Borough and the court shall have power to make such order as the court may think fit and to award costs such costs to be recoverable as a civil debt Notice of the right to appeal shall be endorsed on every requirement of the Corporation under this Article.

17. Any property found in any motor omnibus of the Corporation shall forthwith be taken to a place to be appointed for the purpose by the Corporation and if the same be not claimed within six months after the finding thereof it may be sold as

Lost pro-  
 perty.



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| <p>A.D. 1923.</p> <p style="text-align: center;">—</p> <p><i>Todmorden Order.</i></p> | <p>unclaimed property by public auction after notice by advertisement in one or more local newspapers once in each of two successive weeks and the proceeds thereof carried to the revenue account of the motor omnibus undertaking of the Corporation.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| <p>Penalties &amp;c.</p>                                                              | <p>18. The provisions of Section 51 (Penalty on passengers practising frauds on the promoters) and Section 56 (Recovery of tolls penalties &amp;c.) of the Tramways Act 1870 shall apply to and in relation to the motor omnibuses of the Corporation as if they were carriages used on tramways.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
| <p>Accounts to be furnished to Minister of Transport.</p>                             | <p>19. The Corporation shall every year within three months after the closing of their financial year or such longer period as the Minister of Transport may allow furnish to the Minister of Transport a copy of the annual accounts of their motor omnibus undertaking.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| <p>As to rates on land used for railways.</p>                                         | <p>20. As regards any rates which may be laid under the powers of the Local Act or of this Order to make good any loss which may be incurred in the running of omnibuses outside the Borough the owners of any land used only as a railway constructed under the powers of any Act of Parliament for public conveyance shall be assessed for such rates in respect of the same in the proportion of one fourth part only of the net annual value thereof.</p>                                                                                                                                                                                                                                                                                                                                                            |
| <p>Adaptation of Local Act provisions.</p>                                            | <p>21.—(1) The proviso to subsection (1) of Section 78 of the Local Act is hereby rescinded.</p> <p>(2) In relation to the borrowing of money for the purposes of the motor omnibus undertaking of the Corporation the words "Minister of Transport" shall be substituted in subsections (1) and (3) of Section 78 of the Local Act for the words "Local Government Board" and "Board."</p> <p>(3) The purposes of this Order shall be deemed to be purposes of the Local Act in respect of which the Corporation are empowered to borrow money under Section 78 thereof.</p>                                                                                                                                                                                                                                            |
| <p>Inquiries by Minister of Transport.</p>                                            | <p>22.—(1) In respect of the exercise of any powers or duties conferred on the Minister of Transport or the giving by him of any consents under the Local Act as altered by this Order or under this Order the provisions of Part I. of the Board of Trade Arbitrations &amp;c. Act 1874 shall apply as if this Order were a special Act within the meaning of that Act as if the Minister of Transport were referred to therein in lieu of the Board of Trade and as if in Section 4 of that Act the words "under the Seal of the Minister of Transport" were substituted for the words "by writing under the hand of the President or of one of the Secretaries of the Board."</p> <p>(2) Where the Minister of Transport causes any inquiry to be held for the purposes of this Order otherwise than in pursuance</p> |



[13 & 14 GEO. 5.] *Ministry of Health* [Ch. lxiv.]  
*Provisional Orders Confirmation (No. 10) Act, 1923.*

of an application to hold such inquiry all expenses incurred by the said Minister in relation to such inquiry shall be payable and recoverable under Section 3 of the Board of Trade Arbitrations &c. Act 1874 as if they were expenses incurred by the said Minister in relation to an application.

A.D. 1923.

—  
*Todmorden  
Order.*

23. This Order may be cited as the Todmorden Order 1923. Short title.

Given under the Official Seal of the Minister of Health  
this First day of May One thousand nine hundred  
and twenty-three.

(L.S.)

F. L. TURNER  
Assistant Secretary Ministry of Health.

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URBAN DISTRICT OF WILLENHALL.

*Provisional Order to enable the Urban District Council  
of Willenhall to put in force the Compulsory  
Clauses of the Lands Clauses Acts.*

*Willenhall  
Order.*

WHEREAS the Urban District Council of Willenhall (hereinafter referred to as "the Council") require to purchase and take the lands described in the schedule hereto for the purposes of widening opening enlarging or otherwise improving the streets known as Moat Street and Stafford Street :

Now therefore the Minister of Health in pursuance of the powers given to him by Section 176 of the Public Health Act 1875 and by any other Statutes in that behalf hereby orders that from and after the date of the Act of Parliament confirming this Order the following provisions shall have effect that is to say :—

38 & 39 Vict.  
c. 55.

1. The Council shall be empowered for the purposes aforesaid to put in force with reference to the lands described in the schedule hereto (subject to the continuance of existing public rights of highway if any) the powers of the Lands Clauses Acts as modified by the Acquisition of Land (Assessment of Compensation) Act 1919 with respect to the purchase and taking of lands otherwise than by agreement or any of them.

Compulsory  
powers of  
purchase.

2. This Order may be cited as the Willenhall Order 1923.

Short title.



[Ch. lxiv.] *Ministry of Health* [13 & 14 GEO. 5.]  
*Provisional Orders Confirmation (No. 10) Act, 1923.*

A.D. 1923.

The SCHEDULE above referred to.

Willenhall  
Order.

Parish and Urban District of WILLENHALL in the County of  
STAFFORD.

| No. and<br>Colour on<br>Deposited<br>Plan.                                                                                                                                                                                                                                                                                                                                                                                                                       | Description<br>of Land.                                                  | Situation.                                                        | Name and Addresses of                            |                                                                                                              |                 |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------|-------------------------------------------------------------------|--------------------------------------------------|--------------------------------------------------------------------------------------------------------------|-----------------|
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |                                                                          |                                                                   | Owners or<br>Reputed<br>Owners.                  | Lessees or<br>Reputed<br>Lessees.                                                                            | Occupiers.      |
| 1.<br>Colour<br>Pink.                                                                                                                                                                                                                                                                                                                                                                                                                                            | Land used<br>as a yard in<br>connection<br>with<br>business<br>premises. | Corner of<br>Stafford<br>Street and<br>Moat Street<br>Willenhall. | Mary Ann<br>Protheroe<br>New Road<br>Willenhall. | John Butcher<br>and Harry<br>Phillips<br>trading as<br>Butcher and<br>Phillips<br>Moat Street<br>Willenhall. | The<br>Lessees. |
| The above-mentioned land is more particularly delineated and coloured pink on a plan (being a copy of the deposited plan) in duplicate sealed with the Official Seal of the Minister of Health and marked "Plan referred to in the Willenhall Order 1923" of which duplicate plan one part is deposited in the Office of the Minister of Health and the other shall be deposited in the offices of the Council within fourteen days from the date of this Order. |                                                                          |                                                                   |                                                  |                                                                                                              |                 |

Given under the Official Seal of the Minister of Health this  
Seventeenth day of April One thousand nine hundred  
and twenty-three.

(L.S.)

H. W. S. FRANCIS  
Assistant Secretary Ministry of Health.

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